

22NWCV00876 22NWCV00876

County: los-angeles

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JOHN A ROMO vs JUAN SOTO, et
al.

CASE NO.: 22NWCV00876

HEARING: September 17, 2026 @ 9:30 a.m.

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TENTATIVE ORDER

Defendant Juan Soto's Motion for Terminating
Sanctions (Dismissal with Prejudice) for Failure to Obery Court Order
Compelling Discovery is GRANTED, in part.

Defendant is awarded sanctions in the amount
of \$500.00 against Plaintiff, payable within 60 days.

Defendant to give notice.

Background

This is an action for trademark
infringement. On September 26, 2022, Plaintiff John A. Romo ("Plaintiff") filed
this action against Defendants Juan Soto, Jerry Gonzales, Eddie Soto, Henry
Sotelo, Don Jackson, Jaime Silbas, and Does 1 to 50.

On February 1, 2023, Defendants Don Jackson

and Jaime Silbas were dismissed with prejudice.

On August 8, 2023, Plaintiff filed the First Amended Complaint (FAC). The FAC alleges that Defendants Juan Soto, Jerry Gonzales, Eddie Soto, and Henry Sotelo infringed on Plaintiff's trademark, "New Life Ela Car Club." The Complaint alleges the following causes of action: 1) Trademark Infringement, 2) Trademark Infringement under the Lanham Act, 3) Unfair Competition under the Lanham Act, 4) Unfair Competition under California Business and Professions Code § 17200, 5) False Description, 6) Common Law Injury to Business Reputation, 7) Aiding and Abetting Trademark Infringement, and 8) Declaratory Relief.

On February 11, 2026, the Court granted Defendant Juan Soto's Motion to Compel Plaintiff's Responses to 1) Requests for Production of Documents (Set One), 2) Special Interrogatories (Set One), and 3) Form Interrogatories (Set One). The Court also granted Defendant Juan Soto's Motion for Order Deeming Truth of Facts and Genuineness of Documents. (2/11/26 Minute Order.)

Defendant Juan Soto ("Defendant") now moves for terminating sanctions pursuant to Code of Civil Procedure sections 2023.010 and 2023.030, based on Plaintiff's failure to comply with the Court's February 11, 2026 order compelling discovery responses.

The Court notes that this Motion was continued on the Court's own motion from August 20, 2026 to September 17, 2026.

No opposition has been filed as of September 16, 2026.

Legal Standard

California Code of Civil Procedure section 2023.030 permits courts to impose monetary, issue, evidence, or terminating sanctions against anyone engaging in conduct that constitutes a misuse of the discovery process. (Code Civ. Proc. § 2023.030, subs. (a)-(d).) Section 2023.010 provides a non-exhaustive list of conduct that is considered misuse of the discovery process, including, as relevant here, failing to respond or to submit to an authorized method of discovery and disobeying a court order to

provide discovery. (Code Civ. Proc. § 2023.010, subdivisions (d), (g).)

In determining whether to impose terminating sanctions, trial courts must consider the totality of the circumstances, including whether the actions were willful; the detriment to the propounding party; and the number of informal and formal attempts to obtain the discovery. (Lang v. Hochman (2000) 77 Cal.App,4th 1225, 1246.) The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. “Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (Laguna Auto Body v. Farmers Ins. Exchange, 231 Cal.App.3d at p. 487.) If a lesser sanction fails to curb misuse, a greater sanction is warranted; continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992.)

Discussion

Defendant moves for terminating sanctions—specifically, to dismiss the action—based on Plaintiff’s failure to comply with the Court’s February 11, 2026 order compelling discovery responses. Pursuant to the Court’s order, Plaintiff was required to provide objection-free responses by a deadline of March 3, 2026. (2/11/26 Minute Order.) Defendant argues that Plaintiff’s failure to serve responses constitutes misuse of the discovery responses warranting terminating sanctions.

Defendant argues that Plaintiff’s failure to provide responses has deprived Defendant of a fair opportunity to defend. Defendant argues that, at the time of this Motion was filed on March 9, 2026, trial was set for April 13, 2026. The Court notes that since this Motion was filed, trial has been continued to October 7, 2026. (See 5/19/26 Minute Order.)

Defendant also seeks monetary sanctions in the amount of \$1,200.00.

No opposition has been filed.

The Court finds terminating sanctions to

dismiss the case inappropriate at this time. Failure to obey one court order does not warrant terminating sanctions. Defendant fails to detail the efforts made to obtain Plaintiff's compliance since the deadline to produce the discovery responses. Defense counsel only states that "[Plaintiff was] requested several times to serve discovery responses to litigate this case" and that "Plaintiff[] refused to comply with recovery several times were sanctioned and still were unable to comply with the judge's orders. (Suarez Decl., ¶¶ 1-2.)

At this time, the Court finds further monetary sanctions and a further order compelling Plaintiff to comply with the Court's February 11, 2206 order are appropriate.

Accordingly, Defendant's Motion for Terminating Sanctions (Dismissal with Prejudice) for Failure to Obery Court Order Compelling Discovery is granted, in part.

Defendant is awarded reduced sanctions in the amount of \$500.00 against Plaintiff, payable within 60 days